

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
ROBERT JACKSON,**SUMMONS**

Plaintiff,

Plaintiffs designate
QUEENS County as the
place of trial.

-against-

THE CITY OF NEW YORK, P.O. JASON KANNER ON
ARREST #Q13601514, P.O. M. QURESHI ON
ARREST #Q13601514, and P.O. JOHN DOE ON
ARREST #Q13601514,The basis of venue
is where the Tort
arose and where
Plaintiff resides.Defendants.
-----XThe Tort Arose in:
QUEENS COUNTY, NEW
YORK.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA. NEW YORK
APRIL 4, 2014KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.Attorneys for Plaintiff
ROBERT JACKSON
89-31 161st Street, Suite 705
Jamaica, New York 11432
Our File No. 13-1334TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007P.O. Jason Kanner
1 Police Plaza, Room 1100

New York, NY 10038

P.O. M. Qureshi
1 Police Plaza, Room 1100
New York, NY 10038

P.O. John Doe
1 Police Plaza, Room 1100
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
ROBERT JACKSON,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. JASON KANNER ON
ARREST #Q13601514, P.O. M. QURESHI ON
ARREST #Q13601514 and P.O. JOHN DOE ON
ARREST #Q13601514,

Defendants.
-----X

Plaintiff **ROBERT JACKSON**, by his attorney THE LAW OFFICE OF
KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **ROBERT JACKSON**
was, and still is, a resident of the County of Queens, City and
State of New York.

2. At all times herein mentioned, Defendant **THE CITY OF
NEW YORK** was, and still is, a municipal corporation duly organized
and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned,
Defendants **P.O JASON KANNER ON ARREST #Q13601514, P.O. M. QURESHI
ON ARREST #Q13601514, and P.O. JOHN DOE ON ARREST #Q1360151** were
and are police officers of the Defendant **THE CITY OF NEW YORK**, and
at all times herein were acting in such capacity as the agents,
servants and employees of the Defendant, **THE CITY OF NEW YORK**.

4. On or about March 30, 2013 and within ninety (90) days
after the claim herein arose, the Plaintiff served a Notice of
Claim, in writing and sworn to on his behalf, upon the Defendant

THE CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

6. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on December 2, 2013.

7. That on or about January 8, 2013 at 10:15am near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY Defendants **P.O. JASON KANNER ON ARREST #Q13601514, P.O. M. QURESHI ON ARREST #Q13601514, and P.O. JOHN DOE on ARREST #Q13601514** assaulted and then arrested Plaintiff **ROBERT JACKSON**.

8. Thereafter Plaintiff was brought to the NYPD 109th Precinct followed by Central Booking and was charged and prosecuted in Queens County Criminal Court under Docket #2013QN001412 for various crimes that Plaintiff was innocent of.

9. Said prosecution continued until on or about September 3, 2013 when the criminal prosecution under Docket #2013QN001412 was dismissed and sealed.

AS AND FOR A FIRST CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. That on January 8, 2013 at approximately 10:15am near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **ROBERT JACKSON**, restrained him and interfered with his liberty and took him into custody without authority to the 109th Precinct in Queens County and there charged him with various crimes under Criminal Court Docket #2013QN001412.

12. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance.

13. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times Plaintiff was aware of his confinement.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **ROBERT JACKSON** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their firearms and/or various other objects which they used to physically seize, strike and/or restrain the plaintiff.

16. All of the above actions placed the Plaintiff in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "16" with full force and effect as though set forth at length herein.

18. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **ROBERT JACKSON** in that they subjected him to a harmful or offensive touching.

19. Defendants did not have legal cause to touch the

Plaintiff in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by law.

20. Said contact caused the Plaintiff damage and injury.

AS AND FOR A FOURTH CAUSE OF ACTION

21. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "20" with full force and effect as though set forth at length herein.

22. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, forcibly searched and seized plaintiff without previously having legal cause or suspicion to do so.

23. As a result of the aforementioned unlawful search and seizure Plaintiff was subjected to an unlawful assault, unlawful battery, unlawful and excessive use of force, unlawful arrest and malicious prosecution.

24. Because of the aforementioned conduct of the defendants Plaintiff was damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

25. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "24" with full force and effect as though set forth at length herein.

26. That on January 8, 2013 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about September 3, 2013, Defendants **P.O. JASON KANNER ON ARREST #Q13601514**, **P.O. M. QURESHI ON ARREST #Q13601514**, AND **P.O. JOHN DOE ON ARREST #Q13601514** deliberately and maliciously prosecuted Plaintiff **ROBERT JACKSON**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

27. The Defendants **P.O. JASON KANNER ON ARREST #Q13601514**, **P.O. M. QURESHI ON ARREST #Q13601514**, AND **P.O. JOHN DOE ON ARREST #Q13601514**, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

28. The commencement of these criminal proceedings under Docket #2013QN001412 was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

29. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution and has had to incur the

expense of hiring a criminal defense attorney to represent his interests during that prosecution.

AS AND FOR A SIXTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "29" with full force and effect as though set forth at length herein.

31. Defendants **P.O. JASON KANNER ON ARREST #Q13601514, P.O. M. QURESHI ON ARREST #Q13601514, AND P.O. JOHN DOE ON ARREST #Q13601514** were at all times relevant, duly appointed and acting officers of the New York City Police Department.

32. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

33. Plaintiff **ROBERT JACKSON** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

34. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **ROBERT JACKSON** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize, touch or

subject the Plaintiff to the excessive use of force. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

35. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, did place Plaintiff **ROBERT JACKSON** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

36. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody to the 109th Precinct in Queens County and there charged him with the crimes on Docket No. 2013QN001412. The Plaintiff was thereafter held in custody for more than 48 hours before he was arraigned and released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was

not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

37. That beginning on or about January 8, 2013 and continuing until the end of the aforementioned criminal prosecution on or about September 3, 2013 the Defendants, armed police, while effectuating the seizure of the Plaintiff **ROBERT JACKSON** did search, seize, assault and commit a battery and grab the person of the Plaintiff without probable cause or a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 48 hours until he was arraigned and released on his own recognizance.

38. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from being subjected to excessive use of force;
- g. Freedom from being subjected to unlawful summary punishment.

39. The Defendants subjected Plaintiff to such deprivations, either in a malicious manner or with reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

40. The direct and proximate results of the Defendants' acts are that the plaintiff was forced to endure pain and suffering, all to his detriment. He has suffered severe and permanent injuries of a physical and psychological nature.

AS AND FOR A SEVENTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "40" with full force and effect as though set forth at length herein.

42. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers saw Plaintiff, an African American man, on the sidewalk.

43. Upon information and belief Plaintiff was not engaged in any conduct that would legally justify the Defendants stopping, seizing, frisking, questioning or even demanding information from the Plaintiff.

44. Upon information and belief the Defendants approached Plaintiff for no reason other than the fact that he was African American.

45. The Defendant **THE CITY OF NEW YORK**, has previously implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of unconstitutional stops and frisks of City residents by the New York City Police Department. Said policy remained in effect and was being actively practiced on January 8, 2013.

46. Without the reasonable articulable suspicion required under the Fourth Amendment, NYPD officers, including defendants herein, have been engaged in rampant stops and frisks of individuals, including Plaintiff **ROBERT JACKSON**.

47. NYPD officers, in violation of the Equal Protection Clause of the Fourteenth Amendment, often have used, and on January 8, 2013 used, race and/or national origin - not reasonable suspicion - as the determinative factors in deciding to stop and frisk individuals generally, and Plaintiff herein specifically. The victims of such racial and/or national profiling are principally Black and Latino.

48. The NYPD's widespread constitutional abuses have flourished as a result of, and are directly and proximately caused by, policies, practices and/or customs devised, implemented and enforced by **THE CITY OF NEW YORK**. **THE CITY OF NEW YORK**, its employees, servants and or agents have acted with deliberate indifference to the constitutional rights of those who would come into contact with NYPD officers by: (a) failing to properly screen, train, and supervise NYPD officers, (b) inadequately

monitoring NYPD officers and their stop and frisk practices, (c) failing to sufficiently discipline NYPD officers who engage in constitutional abuses, (d) encouraging, sanctioning and failing to rectify the NYPD's unconstitutional practices.

49. As a direct and proximate result of defendants' policies, practices, and/or customs, hundreds of thousands of City residents, in particular Black and Latino individuals including Plaintiff herein, have been subjected to unconstitutional stops and frisks by NYPD officers. Indeed, many Black and Latino persons repeatedly have been victims of suspicionless stops and frisk by the NYPD.

50. Moreover, the NYPD's constitutional abuses have been attended by unlawful searches and seizures and, at times, excessive force.

51. Plaintiff **ROBERT JACKSON** was likewise subjected to an unconstitutional stop and frisk among other constitutional abuses including the use of excessive force all occurring on January 8, 2013.

52. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;

- e. Freedom from malicious prosecution;
- f. Freedom from being subjected to excessive use of force;
- g. Freedom from being subjected to unlawful summary punishment.

53. **THE CITY OF NEW YORK** subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

54. The direct and proximate results of the Defendants' acts are that the Plaintiff was forced to endure conscious pain and suffering including, but not limited to, severe and permanent physical and psychological injuries.

AS AND FOR EIGHTH CAUSE OF ACTION

55. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "54" with full force and effect as though set forth at length herein.

56. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police

officers should only make an arrest based on probable cause

57. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

58. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that Probable cause must be present before an individual such as Plaintiff herein can be arrested.

59. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused that police officers to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff, commit an assault/battery to her person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN NINTH CAUSE OF ACTION

60. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "59" as if set forth at length herein.

61. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiff herein and other members of the community similarly situated.

62. As a direct and proximate result of the Defendant's failures Plaintiff sustained physical and psychological injuries and was otherwise damaged.

AS AND FOR A TENTH CAUSE OF ACTION

63. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "62" as if set forth at length herein.

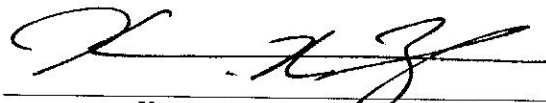
64. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police

officers, owed Plaintiff **ROBERT JACKSON** a duty to act reasonably in the carrying out of their duties and responsibilities.

65. That on January 8, 2013 at approximately 10:15am, near the Flushing Queens YMCA, 138-46 Northern Boulevard Flushing, NY the defendants jointly and severally in their capacity as police officers, breached their duty to Plaintiff by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless and negligent all in disregard of Plaintiff's rights as a citizen of the United States and the State of New York.

66. As a direct and proximate result of the Defendants conduct on January 8, 2013 plaintiff suffered physical and psychological injuries and he was otherwise damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.


Kareem R. Vessup Esq.

VERIFICATION

STATE OF NEW YORK)
) ss
COUNTY OF QUEENS)

Robert Jackson, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

SUMMONS AND COMPLAINT

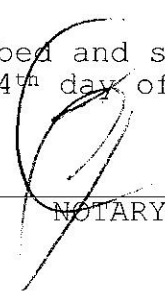
and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: JAMAICA, NEW YORK
 APRIL 4, 2014



ROBERT JACKSON

Subscribed and sworn to before me
on the 4th day of April, 2014



NOTARY PUBLIC

THERESA A. COOK
Notary Public, State of New York
No. 01CO6099323
Qualified in Rockland County
Commission Expires September 29, 2015

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.:
Law Dep't File No.:

ROBERT JACKSON,

Plaintiff

-against-

THE CITY OF NEW YORK, P.O. JASON KANNER ON ARREST #Q13601514, P.O. M.
QURESHI ON ARREST #Q13601514, and P.O. JOHN DOE ON ARREST #Q13601514,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

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To NYC Law Department
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